Mt. Chhabia vs Ram Charan on 7 September, 1942

Equivalent citations: AIR1943ALL7, AIR 1943 ALLAHABAD 7

ORDER

Allsop, J.

1. This is a reference by the learned Additional District Magistrate of Allahabad. He recommends that this Court should set aside an order passed under Section 522, Criminal P. C., by a Bench of Magistrates. He gives three grounds, namely, (1) that the order is signed by only one Magistrate and that there is nothing to show whether any other Magistrate was present at the time when the order was passed, (2) that the order was passed without notice to the person who was dispossessed, and (3) that no order could be passed under Section 522, Criminal P. C., because the offence of which the person against whom the order was passed had been convicted did not involve the use of criminal force or intimidation. There can be no doubt that the order of the Bench of Honorary Magistrates was eminently just and reasonable. The person against whom it was passed had been ejected by a civil Court Amin from a house and her furniture and belongings had been taken by the Amin out of the house and placed outside. It has been found that the person who was put in possession of the house then locked the house up and went away. He did not come to the house for a couple of days and in the meanwhile the woman who was ejected got into the house again and when he returned abused him and threatened him and would not let him in.

2. On the first point that the order was signed by only one Magistrate, I may say that the learned Magistrate who made the reference did not ask for any explanation . from the Bench of Magistrates. The person who was put into possession has to-day filed an affidavit that as a matter of fact enough Magistrates were present to form a quorum at the time the order was passed.

3. On the second point there is authority for the proposition that it is not absolutely necessary to issue notice before passing an order under Section 522, Criminal P. C., and, on the facts of this particular case, it does not appear that any substantial injustice had been done because it is obvious that the person who was ejected could not have put up any reasonable plea that she was entitled to remain in possession. She did allege that she had no knowledge of the civil Court proceedings but that would not help her unless she went to the civil Court and got the order passed against her set aside.

4. On the third point, learned Counsel on behalf of the woman who was ejected has referred to the cases in Churaman v. Ram Lal ('03) 25 All. 341 and Narain Singh v. Panna Lal ('40) 27 A.I.R. 1940 Lah. 460. On the other side reference has been made to the case in Maruthayee v. Appavu Pillai ('23) 10 A.I.R. 1923 Mad. 237. It seems to me that it is not possible to say with any certainty that the order passed by the Bench of Magistrates was a wrong order. In the Lahore case the question only was whether the criminal force to which reference is made in Section 522 would include force used to an

inanimate object and the finding was that it would not. In the Allahabad case there are several possible questions which were not raised nor decided. It seems to me, in the first place, very doubtful whether it can necessarily be said that every criminal trespasser dispossesses the person who is entitled to be in possession of the property. It is open to argument that it is not necessarily at the time when the criminal trespasser goes upon the property that dispossession takes place. It may perhaps be said that it sometimes takes place at the time when he prevents the rightful possessor from coming upon the property. It must be remembered that criminal trespass is not confined only to the mere entering upon property but it also includes remaining on the property. The learned Magistrates heard all the evidence in the case and though they did not convict the woman under Section 500, Penal Code, they may have thought that she was guilty of some force or intimidation when she prevented the other party from returning to the house. I am not satisfied that the order is necessarily illegal and as it is in substance a just order, I see no reason to interfere. The reference is rejected.